

# EMPLOYMENT AGREEMENT

This Employment Agreement ("Agreement") is entered into on \_\_\_\_\_, by and between ABC Technologies Private Limited, a company incorporated under the laws of India, having its registered office at \_\_\_\_\_ ("Employer"), and Mr./Ms. \_\_\_\_\_, residing at \_\_\_\_\_ ("Employee").

## 1. Appointment

The Employer appoints the Employee as a Software Engineer. The Employee shall perform software development, testing, documentation, maintenance, and other duties reasonably assigned.

## 2. Term

The employment shall commence on \_\_\_\_\_ and continue until terminated in accordance with this Agreement. The first six months shall constitute probation.

## 3. Compensation

The Employee shall receive a gross annual salary of INR \_\_\_\_\_ payable monthly after applicable deductions. The Employee may also be eligible for performance bonuses and benefits in accordance with company policy.

## 4. Duties

The Employee shall devote full working time to the Employer's business, comply with applicable policies, maintain professional conduct, and protect company property.

## 5. Confidentiality

The Employee shall keep confidential all trade secrets, customer information, source code, technical documentation, business strategies, financial information, and other proprietary information both during and after employment, except where disclosure is required by law.

## 6. Intellectual Property Assignment

All inventions, discoveries, software, source code, documentation, designs, algorithms, databases, improvements, and other work products created by the Employee during employment and relating to the Employer's business shall be the exclusive property of the Employer. The Employee hereby assigns all rights, title, and interest in such intellectual property to the Employer.

## 7. Restrictive Covenants

The Employee acknowledges access to valuable confidential information and agrees that, for a period of twenty-four (24) months following termination of employment for any reason, the Employee shall not, directly or indirectly, accept employment with, provide services to, consult for, establish, finance, or otherwise participate in any competing business operating anywhere within India where such activities are similar to those performed for the Employer.

## **8. Termination**

Either party may terminate employment by providing thirty (30) days' written notice or salary in lieu of notice, subject to applicable law. The Employer may terminate employment immediately for misconduct, fraud, breach of confidentiality, or material breach of this Agreement.

## **9. Governing Law**

This Agreement shall be governed by the laws of India. Courts at Bengaluru shall have exclusive jurisdiction.

## **10. Entire Agreement**

This Agreement constitutes the entire understanding between the parties and supersedes prior discussions.

IN WITNESS WHEREOF, the parties have executed this Agreement. Employer:

\_\_\_\_\_ Employee: \_\_\_\_\_ Date: \_\_\_\_\_